RESOLUTION MSC.239(83) Adopted on 12 October 2007
AMENDMENTS TO THE INTERNATIONAL CONVENTION FOR THE SAFETY OF LIFE AT SEA, 1974, AS AMENDED

RESOLUTION MSC.239(83)

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AMENDMENTS TO THE INTERNATIONAL CONVENTION FOR THE SAFETY OF LIFE AT SEA, 1974, AS AMENDED

THE MARITIME SAFETY COMMITTEE,

RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,

RECALLING FURTHER article VIII(b) of the International Convention for the Safety of Life at Sea (SOLAS), 1974 (hereinafter referred to as the Convention), concerning the amendment procedure applicable to the Annex to the Convention, other than to the provisions of chapter I thereof,

HAVING CONSIDERED, at its eighty-third session, amendments to the Convention, proposed and circulated in accordance with article VIII(b)(i) thereof,

1. ADOPTS, in accordanc e with article VIII(b)(iv) of the Convention, amendments to the Convention, the text of which is set out in the Annex to the present resolution;

2. DETERMINES, in accordance with article VIII(b)(vi)(2)(bb) of the Convention, that the

Convention, the text of which is set out in the Annex to the present resolution;

2. DETERMINES, in accordance with article VIII(b)(vi)(2)(bb) of the Convention, that the said amendments shall be deemed to have been accepted on 1 January 2009, unless, prior to that date, more than one third of the Contracting Governments to the Convention or Contracting Governments the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the worlds merchant fleet, have notified their objections to the amendments;

3. INVITES SOLAS Contracting Governments to note that, in accordance with article VIII(b)(vii)(2) of the Convention, the amendments shall enter into force on 1 July 2 009 upon their acceptance in accordance with paragraph 2 above;

4. REQUESTS the Secretary -General, in conformity with article VIII(b)(v) of the Convention, to transmit certified copies of the present resolution and the text of the amendments contained in the Annex to all Contracting Governments to the Convention;

5. FURTHER REQUESTS the Secretary -General to transmit copies of this resolution and

contained in the Annex to all Contracting Governments to the Convention;

5. FURTHER REQUESTS the Secretary -General to transmit copies of this resolution and its Annex to Members of the Organization, which are not Contracting Governments to the Convention.

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ANNEX

AMENDMENTS TO THE INTERNATIONAL CONVENTION FOR
THE SAFETY OF LIFE AT SEA, 1974, AS AMENDED

CHAPTER IV
RADIOCOMMUNICATIONS

PART A
GENERAL

1 The following new regulation 4-1 is added after the existing regulation 4:

Regulation 4-1
GMDSS satellite providers

The Maritime Safety Committee shall determine the criteria, procedures and arrangements for the evaluation, recognition, review and oversight of the provision of mobile satellite communication services in the Global Maritime Distress and Safety System (GMDSS) pursuant to the provisions of this chapter.

CHAPTER VI
CARRIAGE OF CARGOES

2 The following new regulation 5-1 is added after the existing regulation 5:

Regulation 5-1
Material safety data sheets

System (GMDSS) pursuant to the provisions of this chapter.

CHAPTER VI
CARRIAGE OF CARGOES

2 The following new regulation 5-1 is added after the existing regulation 5:

Regulation 5-1
Material safety data sheets

Ships carrying MARPOL Annex I cargoes, as def ined in Appendix I to Annex I of the Protocol of 1978 relating to the International Convention for the Prevention of Pollution from Ships, 1973, and marine fuel oils shall be provided with a material safety data sheet prior to the loading of such cargoes b ased on the recommendations developed by the Organization.

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APPENDIX
CERTIFICATES

Form of Nuclear Passenger Ship Safety Certificate

3 In the table of paragraph 2.1.3 in the section commencing with the words THIS IS TO CERTIFY:, the reference to reg ulation II-1/13 is replaced by regulation II -1/183, the words C.1, C.2, C.3 are replaced by P.1, P.2, P.3 and the following footnote is added:

_____

IS TO CERTIFY:, the reference to reg ulation II-1/13 is replaced by regulation II -1/183, the words C.1, C.2, C.3 are replaced by P.1, P.2, P.3 and the following footnote is added:

_____

3 For ships constructed before 1 January 2009, the applicable subdivision notation C.1, C. 2 and C.3 should be used.

4 After the existing paragraph 2.10 in the section commencing with the words THIS IS TO CERTIFY:, the following new paragraphs 2.11 and 2.12 are added:

2.11 the ship was/was no t1 subjected to an alternative design and arran gements in pursuance of regulation II-2/17 of the Convention;

2.12 a Document of approval of alternative design and arrangements for fire safety is/is not1 appended to this Certificate.

_____

1 Delete as appropriate.

Form of Nuclear Cargo Ship Safety Certificate

5 After the existing paragraph 2.9 in the section commencing with the words THIS IS TO CERTIFY:, the following new paragraphs 2.10 and 2.11 are added:

2.10 the ship was/was no t3 subjected to an alternative design and arrangements in pursuance of regulation II-2/17 of the Convention;

IS TO CERTIFY:, the following new paragraphs 2.10 and 2.11 are added:

2.10 the ship was/was no t3 subjected to an alternative design and arrangements in pursuance of regulation II-2/17 of the Convention;

2.11 a Document of approval of alternative design and arrangements for fire safety is/is not3 appended to this Certificate.

_____
3 Delete as appropriate.

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